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IN THE SUPREME COURT OF THE STATE OF IDAHO

CECIL D. DANIELS, *Petitioner-Appellant,* vs. STATE OF IDAHO, *Respondent.*	)))))))	S.Ct. No. 40811-2013 D.Ct. No. 2011-7510 (Kootenai County) Hon. Carl B. Kerrick **BRIEF IN SUPPORT OF PETITION FOR REVIEW**

COMES NOW Appellant Cecil Daniels, through counsel of record Deborah Whipple, pursuant to Idaho Appellate Rule 118, and offers this brief in support of his Petition for Review.

Review should be granted in the interests of justice because the Court of Appeals' decision in this case denies those prosecuted by the State of Idaho their state and federal constitutional rights to counsel, due process, and access to the courts. Idaho Const. Art. I, §§ 13 and 18, United States Const. Amends. 5, 6, and 14.

History of the Case

Mr. Daniels was charged by information with felony DUI; possession of a controlled substance; driving without privileges; and providing false information to law enforcement following a traffic stop in 2008. R 29. He filed a motion to suppress evidence obtained during the traffic stop. R 29-30. However, the motion was denied. R 30. Mr. Daniels filed a motion to reconsider. R 30-31. That motion was also denied. R 31.

At trial Mr. Daniels was convicted of felony DUI, possession of an open container of alcohol, driving without privileges, and providing false information to law enforcement. The jury could not reach a verdict on possession of a controlled substance. R 31.

The court sentenced Mr. Daniels to ten years with a minimum fixed term of three years on the DUI. R 31.

Mr. Daniels filed a timely notice of appeal. R 31. In his notice of appeal, he specifically noted that an issue to be presented on appeal was whether the district court erred in denying the motion to suppress. R 37054, Vol. 8, p. 27.[1]

However, on appeal, appointed counsel raised only the issues that the district court imposed an excessive sentence and later erred in denying Mr. Daniels'

[1]This Court took judicial notice of the record of the underlying criminal case in its order entered August 19, 2013.

Criminal Rule 35 motion for reduction of the sentence. R 28-39. The Court of Appeals denied appellate relief in an unpublished decision that was less than two pages long. R 44-45.

Mr. Daniels filed a timely *pro se* petition for post-conviction relief. R 5-11. The court appointed counsel and an amended petition was filed. R 27, 46-49. The amended petition alleged:

> 2. Petitioner contends that appellate counsel failed to adequately prosecute his appeal in as much as appellate counsel refused, despite Petitioner's specific requests, to argue that the trial court erred by denying Petitioner's motion to suppress, and violated Petitioner's Sixth Amendment right to counsel and right to due process of law, and but for this deficiency Petitioner would have argued that the denial of the motion to suppress was error, and would have prevailed on appeal, resulting in the reversal of his conviction.
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> R 47.

In response to the state's motion for summary dismissal, Mr. Daniels filed a memorandum which argued that, as appellate counsel had effectively abandoned the appeal, proof of prejudice was not required. R 60-64. The court denied the motion for summary dismissal as to the claim of ineffective assistance of appellate counsel. (A claim of ineffective assistance of trial counsel was dismissed pursuant to Mr. Daniels' concession that there was no basis for it.) R 65-72.

At the evidentiary hearing, Mr. Daniels presented evidence and argument to support his claim that his constitutional right to counsel was violated when appellate counsel did not raise the suppression issue on direct appeal. Tr. 1/28/13.

Mr. Daniels requested that the district court reinstate his right to appeal from all the convictions entered in the criminal case, most specifically the right to appeal the denial of the motion to suppress. R 78.

The district court denied Mr. Daniels' petition holding that Mr. Daniels had failed to establish that appellate counsel's representation fell below an objective standard of reasonableness and further that he failed to establish that the outcome of the appeal would have been different if he had been able to present the suppression issue. R 77-89.

This appeal timely followed. R 88-91.

Decision in the Court of Appeals

On March 26, 2014, the Court of Appeals affirmed the denial of Mr. Daniels' petition for post-conviction relief in a published opinion. A copy of the Opinion is attached to this brief.

Of import to this petition for review, Mr. Daniels argued on appeal that because Idaho has no mechanism to allow an appellant to file a *pro se* brief to address issues not raised by appointed counsel, the failure of his counsel to raise his suppression motion in his direct appeal was deficient performance which should be presumed prejudicial. Appellant's Opening Brief pages 3-7.[2] The Court of Appeals stated the following:

[2] Appellant's Opening Brief is incorporated in full in this brief.

> Daniels argues that *Jones v. Barnes*, 463 U.S. 745, 748 (1983), is distinguishable from the instant case because in *Jones*, in addition to appellate counsel's brief, the defendant was allowed to file a pro se brief raising claims that appellate counsel's brief omitted. Idaho has no appellate rule allowing a defendant to file a pro se brief in addition to appellate counsel's brief. Thus, Daniels claims that in Idaho, it should be a constitutional right to force counsel to raise all nonfrivolous issues on appeal. Although Daniels is correct that the appellant in *Jones* was able to file a pro se brief, we do not read the majority's opinion as requiring a mechanism to allow a pro se brief in addition to appellate counsel's brief, or alternatively, presume prejudice.
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> Slip Op. page 5, fint. 1.

Reason Why Review Should Be Granted

Idaho, unlike some other states, has no mechanism to allow an appellant to file a *pro se* brief so long as he is represented by counsel. The denial of a procedure for filing a *pro se* brief combined with an inability to force appellate counsel to raise specific non-frivolous issues results in a denial of the state and federal constitutional rights to access to the courts, counsel, and due process.

While *Jones v. Barnes*, 463 U.S. 745, 751, 103 S.Ct. 3308, 3312 (1983), does state that an indigent defendant does not have a constitutional right to compel appointed appellate counsel to press all non-frivolous arguments that the defendant wishes to pursue, that case involved an indigent appellant who was allowed to file his own *pro se* brief in addition to his appointed counsel's brief - by filing the *pro*

se brief, the appellant had an opportunity to place his desired issues before the appellate court. It is that opportunity which is crucial to a constitutional analysis.

> As noted by Justice Brennan in his dissent in *Jones*:
>
> *Faretta* [*v. California*, 422 U.S. 806, 95 S.Ct. 2525 (1975),] establishes that the right to counsel is more than a right to have one's case presented competently and effectively. It is predicated on the view that the function of counsel under the Sixth Amendment is to protect the dignity and autonomy of a person on trial by assisting him in making choices that are his to make, not to make choices for him, although counsel may be better able to decide which tactics will be more effective for the defendant. *Anders v. California*[, 386 U.S. 738, 87 S.Ct. 1396 (1967),] also reflects that view. Even when appointed counsel believes an appeal has no merit, he must furnish his client a brief covering all arguable grounds for appeal so that the client may 'raise any points that he chooses.' 386 U.S., at 744, 87 S.Ct., at 1400.
>
> *Jones v. Barnes*, 463 U.S., at 758, 108 S.Ct., at 3316 (Brennan, J., dissenting) (emphasis original).

Idaho does not allow a *pro se* brief so long as the appellant is represented by counsel. Therefore, the constitutional safety valve present in *Jones* is missing here. While in *Jones*, it was not necessary to declare a constitutional right to force appointed counsel to raise any specific non-frivolous issue because the appellant could raise whatever issues he/she wished in a *pro se* brief, in Idaho, a constitutional right to force counsel to raise non-frivolous issues is necessary and will remain necessary so long as the appellate rules remain unchanged. *Cf.* Washington Rule of Appellate Procedure 10.10 Statement of Additional Grounds for Review, which specifically authorizes an appellant in a review of a criminal

case to file a *pro se* statement of additional grounds for review to identify and discuss those matters which the appellant believes have not been adequately addressed by the brief filed by counsel. *See also*, Oregon Rule of Appellate Procedure 5.92 Supplemental *pro se* briefs; Mississippi Rule of Appellate Procedure 28(b), authorizing *pro se* supplemental briefs; Iowa Appellate Rule 6.901(2) Pro se supplemental proof briefs; Minnesota Rule of Criminal Procedure 28.02, authorizing pro se supplemental briefs; Oklahoma Court Criminal Appellate Rule 3.4, setting out procedure for filing of *pro se* supplemental briefs.

In accord with *Jones*, Mr. Daniels requests that this Petition for Review be granted and that this Court hold that until Idaho establishes procedures for the filing of *pro se* supplemental briefs in criminal appeals, appellants do in fact have state and federal constitutional rights to access to the courts, counsel, and due process which allow the appellants to compel counsel to raise all non-frivolous issues on appeal.

Conclusion

For the reasons set forth above and in his Opening Brief, Mr. Daniels requests that this Court grant review and reverse the district court judgment denying him post-conviction relief.

Respectfully submitted this 28th day of April, 2014.

This brief contains 1572 words and complies with the word-count limit of I.A.R. 34(b).

/s/ *Deborah Whipple*
Deborah Whipple
Attorney for Cecil Daniels

Certificate of Service

I CERTIFY that on April 28, 2014, I caused a true and correct copy of the foregoing document to be mailed to:

Daphne J. Huang
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/s/ *Deborah Whipple*
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